

Aftab Alam Khan v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 20 February 2023 · WRIT - C No. - 5720 of 2023 · **Disposed; theft-dues notice withdrawn; fresh order under Code.**

HEADNOTE

Writ petition challenging a demand notice for recovery of electricity theft dues. The respondent electricity department stated that the notice had been withdrawn and that a fresh order would follow after hearing. Petition disposed of with liberty to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Aftab Alam Khan approached the Allahabad High Court against a demand notice dated 17 September 2022 issued by respondent no. 4. The notice sought recovery of electricity dues in a case of alleged theft of electricity. At the hearing, counsel for the respondent electricity department told the Court that the impugned notice had been withdrawn. He further stated that a fresh order would be passed after the petitioner was given an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Theft demand withdrawn; fresh order under Supply Code procedure

HOLDING

Where the electricity department withdraws the impugned demand notice for recovery of theft dues and undertakes to pass a fresh order after hearing the consumer, the writ is disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG The Supply Code, 2005 is named without any clause number.

PRINCIPLE TAGS

procedural-listing-no-construction The Court recorded withdrawal of the theft-dues demand and disposed of the writ without construing any clause, leaving a fresh order after hearing to the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR THE ALLEGED THEFT OF ELECTRICITY, AND IN WHAT AMOUNT

The impugned demand was withdrawn. Any fresh assessment after hearing was left to the respondents. ¶ 1